

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
MARSHA SIBBLIES,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. ANTONIO
PAPALLO, P.O. JOHN CASAZZA, LT. WILLIAM
TAYLOR, SGT. LAWRENCE DONNEL, AND
"JOHN DOES 1-5,"

Defendants.

Index No.:

Purchased On:

Plaintiff designates
the County of Bronx
as the place of trial

The basis of the venue is
place of occurrence

SUMMONS

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To the above named Defendants

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: New York, New York
December 31, 2014

BENNO & ASSOCIATES P.C.

By: 
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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

MARSHA SIBBLIES,

Plaintiff,

vs.

THE CITY OF NEW YORK, P.O. ANTONIO
PAPALLO, P.O. JOHN CASAZZA, LT. WILLIAM
TAYLOR, SGT. LAWRENCE DONNEL, AND
“JOHN DOES 1-5,”

Defendants.

Index No.:

VERIFIED COMPLAINT

JURY TRIAL REQUESTED

Plaintiff, by her attorneys, BENNO & ASSOCIATES P.C., complaining of Defendants, alleges as follows, upon information and belief:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages, and attorney’s fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violation of her civil rights under 42 U.S.C. § 1983 and the First, Fourth, and Fourteenth Amendments to the United States Constitution. Plaintiff also asserts claims under New York law.

JURY TRIAL DEMANDED

2. Plaintiff demands trial by jury of all issues properly triable thereby.

VENUE

3. Venue is proper for the Supreme Court, County of Bronx, pursuant to CPLR §

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2 504(3).

3 **THE PARTIES**

4 4. Plaintiff MARSHA SIBBLIES is a United States citizen and a citizen of the City
5 and State of New York.

6 5. That at all times herein mentioned, defendant CITY OF NEW YORK (hereinafter
7 "CITY") was and is a municipal corporation, duly organized and existing under and by virtue of
8 the laws of the State of New York.

9 6. That at all times herein mentioned, defendant CITY operated, controlled and
10 maintained a police force known as the New York Police Department ("hereinafter "NYPD").

11 7. That at all times herein mentioned, defendant P.O. ANTONIO PAPALLO
12 (hereinafter, "PAPALLO") was and is an NYPD officer employed by defendant CITY.

13 8. That at all times herein mentioned, defendant PAPALLO was acting within the
14 course and scope of his employment with defendant CITY.

15 9. That at all times herein mentioned, defendant PAPALLO was acting under color
16 of state law.

17 10. Defendant PAPALLO is sued herein in both his individual and official capacities.

18 11. That at all times herein mentioned, defendant P.O. JOHN CASAZZA (hereinafter,
19 "CASAZZA") was and is an NYPD officer employed by defendant CITY.

20 12. That at all times herein mentioned, defendant CASAZZA was acting within the
course and scope of his employment with defendant CITY.

13. That at all times herein mentioned, defendant CASAZZA was acting under color
of state law.

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2 14. That defendant CASAZZA is sued herein in both his individual and official
3 capacities.

4 15. That at all times herein mentioned, defendant LT. WILLIAM TAYLOR
(hereinafter, "TAYLOR") was and is an NYPD officer employed by defendant CITY.

5 16. That at all times herein mentioned, defendant TAYLOR was acting within the
6 course and scope of his employment with defendant CITY.

7 17. That at all times herein mentioned, defendant TAYLOR was acting under color of
8 state law.

9 18. Defendant TAYLOR is sued herein in both his individual and official capacities.

10 19. That at all times herein mentioned, defendant SGT. LAWRENCE DONNEL
(hereinafter, "DONNEL") was and is an NYPD officer employed by defendant CITY.

11 20. That at all times herein mentioned, defendant DONNEL was acting within the
12 course and scope of his employment with defendant CITY.

13 21. That at all times herein mentioned, defendant DONNEL was acting under color of
14 state law.

15 22. Defendant DONNEL is sued herein in both his individual and official capacities.

16 23. That at all times herein mentioned, defendants JOHN DOES 1 through 5 were and
are NYPD officers employed by defendant CITY.

17 24. That at all times herein mentioned, defendants JOHN DOES 1 through 5 were
18 acting within the course and scope of their employment with defendant CITY.

19 25. That at all times herein mentioned, defendants JOHN DOES 1 through 5 were
20 acting under color of state law.

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2 26. The names "JOHN DOES 1 through 5" are fictitious, as these defendants' true
3 names are presently unknown.

4 27. These defendants are intended to be the law enforcement personnel involved in
5 the stop, detention, assault, battery, searches, arrest, imprisonment, and prosecution of plaintiff,
6 as well as the impounding and forfeiture of her personal property.

7 28. That defendants JOHN DOES 1 through 5 are sued herein in both their individual
8 and official capacities.

9 29. That at all times herein mentioned, defendant CITY was under an obligation to use
10 reasonable care in the hiring, training, retention, and supervision of its employees, including,
11 without limitation, defendants PAPALLO, CASAZZA, TAYLOR, DONNEL and JOHN DOES
12 1-5 .

13 30. At all relevant times herein, the individual defendants acted jointly and in concert
14 with each other.

15 31. Each individual defendant had the duty and the opportunity to protect plaintiff
16 from the unlawful actions of the other individual defendants, but each individual defendant failed
17 and refused to perform such duty, thereby proximately causing plaintiff's injuries.

18 **JOINT AND SEVERAL LIABILITY**

19 32. That all of the causes of action pleaded herein fall within one or more of the
20 exceptions set forth in New York's Civil Practice Law & Rules § 1602 with respect to joint and
several liability.

STATEMENT OF FACTS

33. The facts stated in this complaint are based, inter alia, on the personal knowledge

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2 of plaintiff regarding events in which she was directly involved and upon information and belief.
3 The sources of “information and belief” factual statements are primarily documents from the
4 underlying criminal prosecution and related public documents which are currently available to
5 plaintiff. Those sources are incomplete, particularly, without limitation, as to numerous
6 documents and court exhibits. This complaint is drawn without the benefit of full discovery
7 proceedings.

8 34. Plaintiff repeats and realleges each and every allegation set forth above as though
9 fully set forth at length herein.

10 35. On November 27, 2006 at approximately 5:50 p.m., plaintiff, who is African-
11 American and a decorated military veteran, was driving home from the Bronx Veterans Hospital
12 on Kingsbridge Road in the Bronx.

13 36. Plaintiff’s car was a silver 2001 Jaguar S-Type.

14 37. Plaintiff was driving in the left lane of the two lanes of traffic on Bailey Avenue in
15 the Bronx heading toward 230th Street, where the on-ramp to the Major Deegan Expressway was
16 located.

17 38. Plaintiff was following the flow of traffic, which was moving very slowly due to
18 heavy traffic and gridlock at the time at the intersection of Bailey Avenue and 230th Street.

19 39. As plaintiff turned with the rest of the slow-moving traffic from Bailey Avenue
20 onto 230th Street on her way to the Major Deegan on-ramp, defendant PAPALLO, who was
standing in the street directing traffic, looked inside plaintiff’s car and signaled for plaintiff to pull
over to the side of the ramp to the Deegan Expressway.

40. Defendant PAPALLO then walked over to plaintiff’s vehicle and demanded that

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2 she roll down her window. Plaintiff complied,

3 41. Defendant PAPALLO then demanded to know if the car belonged to plaintiff.
4 When plaintiff answered in the affirmative, defendant PAPALLO told plaintiff to give him her
5 license.

6 42. Plaintiff asked, "What did I do wrong?" In response, defendant PAPALLO told
7 plaintiff to wait there and he walked away.

8 43. Plaintiff rolled her window back up as she waited, as it was late November and
9 already getting cold outside.

10 44. Thereafter, defendants CASAZZA and PAPALLO then approached plaintiff's car.
11 Defendant CASAZZA approached on the passenger side of plaintiff's car, and defendant
12 PAPALLO approached on the driver's side.

13 45. Defendant CASAZZA ordered plaintiff to roll her window down, and plaintiff
14 complied.

15 46. Defendant CASAZZA then lunged through the window and grabbed plaintiff's
16 pocketbook off the passenger seat.

17 47. Plaintiff began pulling back on her purse, and defendant CASAZZA then latched
18 on to plaintiff's arm and forcefully began pulling and twisting it.

19 48. Plaintiff was terrified by defendants' conduct – indeed, the events described herein
20 took place just two days after the highly publicized shooting death of Sean Bell, an unarmed
African-American man, killed by NYPD police officers in Queens, New York.

49. With her free hand, plaintiff grabbed her cell phone and called 911 for help.

50. Once plaintiff called 911, defendant CASAZZA then let go of plaintiff's arm;

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2 upon releasing plaintiff's arm from his grasp, defendant CASAZZA gripped the top of the glass of
3 the window, which was still partially open, with both of his hands, and pressed his face into the
4 open window, and bared his teeth at plaintiff.

5 51. Once plaintiff was connected to a 911 operator, she told the operator that an officer
6 had come through her window and that he was grabbing her purse and her arm. Plaintiff, who by
7 this time was utterly petrified, begged the 911 operator to help her and to tell her what to do.

8 52. Upon information and belief, the 911 operator responded that she did not know
9 what to do, nor could she tell plaintiff what to do. Plaintiff, who was by now crying, pleaded for
10 them to please send somebody to help her, and she expressed that she was in fear for her life. The
11 911 operator told plaintiff to remain where she was, and that she would alert dispatch to send
12 somebody.

13 53. Thereafter, another police vehicle arrived at the scene and pulled in front of
14 plaintiff's car. Two officers got out of said police car.

15 54. One of these officers was defendant TAYLOR, and the other was one of the "DOE"
16 defendants herein.

17 55. Upon defendant TAYLOR's arrival, defendant CASAZZA released his grip on the
18 front passenger window of plaintiff's car and walked over to defendant TAYLOR and spoke with
19 him.

20 56. After speaking to each other, defendants TAYLOR and CASAZZA came to the
driver's side window of plaintiff's car.

57. Defendant TAYLOR was holding his nightstick, and as he approached plaintiff's
car he was beating his hand with it in a threatening manner.

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2 58. Defendant TAYLOR ordered plaintiff to roll down her window, and plaintiff
3 complied.

4 59. Once the window was open, defendant TAYLOR ordered plaintiff to get off the
5 phone and to get out of the car.

6 60. When plaintiff asked, through tears, what she did wrong, defendant TAYLOR
7 refused to answer and merely barked that plaintiff had to get out of the car because he said so.

8 61. Without waiting for plaintiff to step out of the vehicle, and while plaintiff's
9 seatbelt was still on, defendant TAYLOR then punched plaintiff in the chest, grabbed her by her
10 shirt, and viciously and violently began trying to pull plaintiff out of the window of plaintiff's car.

11 62. All of defendants then swarmed around plaintiff's car and began pulling plaintiff
12 out of the vehicle. Defendants' hands were all over plaintiff's body and were pulling plaintiff in
13 several different directions.

14 63. One officer, included in defendants herein, reached in through the passenger side
15 and unlatched plaintiff's seatbelt.

16 64. Defendants then forcefully and viciously pushed plaintiff's body, pulled plaintiff
17 out of the car, threw her entire body face down on the ground, and then handcuffed her.

18 65. Defendants' actions caused plaintiff to suffer physical injury and caused her to
19 bleed.

20 66. At least one of defendants herein then drove off in plaintiff's car.

67. Defendants then pulled plaintiff up, violently threw her against a car, illegally
searched her, and then threw her into the back of a police vehicle, and took her into police custody.

68. At all times leading up to and including the arrest of plaintiff by defendants,

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2 plaintiff had committed no offenses.

3 69. Defendants intentionally and/or with deliberate indifference to plaintiff's
4 constitutional and civil rights forcibly seized, detained, arrested and imprisoned plaintiff without
5 justification, privilege or probable cause.

6 70. Upon information and belief, defendants, without plaintiff's consent and without
7 probable cause, searched plaintiff's person and possessions, including plaintiff's purses, handbags,
8 and belongings.

9 71. Upon information and belief, defendants, without plaintiff's consent and without
10 probable cause, searched plaintiff's automobile, including the glove compartment and trunk.

11 72. At no time did plaintiff provoke the physical assault on her or offer any resistance.

12 73. Defendants gratuitously used force against plaintiff and used more force than was
13 reasonably necessary to take plaintiff into custody.

14 74. No police officers ever told plaintiff the reason that plaintiff had been stopped in
15 the first place or why she was placed under arrest.

16 75. Plaintiff was transported to a nearby police precinct by defendants, where
17 plaintiff was photographed, fingerprinted, and either handcuffed to a rail or confined to a cell
18 for approximately six (6) hours.

19 76. At the precinct, defendants mocked and taunted plaintiff, and repeatedly demeaned
20 and humiliated her.

77. At no time while plaintiff was at the precinct did anyone ever tell her why she had
been stopped or explain the reason for her arrest.

78. After approximately six (6) hours in the precinct, plaintiff was transported to

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2 Bronx Central Booking.

3 79. Plaintiff remained imprisoned at Bronx Central Booking and other detention
4 facilities for approximately three (3) days.

5 80. At no time while plaintiff was incarcerated was she ever told what she had been
6 arrested for, or why she had been pulled over in the first place.

7 81. While plaintiff was unlawfully imprisoned, defendants knowingly relayed false
8 allegations against plaintiff that they had devised to the Bronx County District Attorney's Office,
9 which used that information to draft a criminal court complaint against plaintiff.

10 82. Thereafter, defendants signed said criminal court complaint, which, based on the
11 fabricated information that defendants had provided to the District Attorney's Office, charged
12 plaintiff with, among other charges, one felony count of Assault in the Second Degree as well as
13 misdemeanor counts of Resisting Arrest, Obstruction of Governmental Administration in the
14 Second Degree, and Harassment in the Second Degree.

15 83. Plaintiff did not commit any of the offenses with which she was charged, nor did
16 she commit any offense or engage in any unlawful conduct on November 27, 2006; nor did any
17 police officer observe plaintiff do so.

18 84. Defendants signed the criminal court complaint, thereby swearing to the veracity
19 of its allegations, under penalty of perjury, despite their knowing that there was no truth to those
20 allegations whatsoever, that these allegations against plaintiff were false and completely
fabricated, that there was never any legal basis to have detained or arrested plaintiff, and that there
was no legal basis to prosecute her.

85. All defendants conspired to lodge these false allegations against plaintiff and

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2 initiate a prosecution against her for offenses they knew she did not commit.

3 86. Defendants made these false allegations against plaintiff with actual malice, and
4 out of spite and ill will, and with retributive purpose.

5 87. Defendants engaged in the above-described conduct intentionally and/or with
6 deliberate indifference to plaintiff's constitutional and civil rights.

7 88. Thereafter, plaintiff was arraigned on that criminal court complaint under Bronx
8 County Docket Number 2006BX062704.

9 89. Plaintiff pleaded not guilty to all counts, and was released on her own
10 recognizance.

11 90. Plaintiff thereafter was required on several occasions to appear in court to defend
12 against these false criminal charges that had been lodged against her.

13 91. Upon information and belief, during the course of plaintiff's prosecution,
14 defendants signed supporting depositions wherein they averred, under penalty of perjury, the
15 veracity of the allegations contained in the criminal court complaint, despite knowing that the
16 allegations against plaintiff were false and completely fabricated, that there was never any legal
17 basis to have detained or arrested plaintiff, and that there was no legal basis to prosecute her.

18 92. All defendants conspired to lodge these false allegations against plaintiff and
19 initiate a prosecution against her for an offense they knew she did not commit.

20 93. Defendants made these false allegations against plaintiff with actual malice, and
out of spite and ill will, and with retributive purpose.

94. Defendants engaged in the above-described conduct intentionally and/or with
deliberate indifference to plaintiff's constitutional and civil rights.

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2 95. The prosecution of plaintiff continued until approximately April 8, 2014, at which
3 time all charges against plaintiff were dismissed.

4 96. Further, in connection with defendants' unlawful arrest, imprisonment, and
5 prosecution of plaintiff, defendants illegally seized plaintiff's vehicle without any probable cause,
6 privilege, or consent, and thereafter brought civil forfeiture proceedings against plaintiff with
7 respect to plaintiff's car under New York County civil index number 400430/2007.

8 97. Defendants brought said civil forfeiture proceeding was brought with the intent to
9 harm plaintiff without economic or social excuse or justification.

10 98. In bringing the civil forfeiture proceeding, defendants were seeking a collateral
11 advantage or corresponding detriment to plaintiff which was outside the legitimate ends of the
12 process. This included, but was not limited to, covering up defendants' illegal actions in
13 knowingly arresting plaintiff without any legal basis, justification, or probable cause, in
14 fabricating allegations against plaintiff, and in perjuring themselves in court proceedings and
15 documents.

16 99. As a result of the foregoing, plaintiff sustained, inter alia, loss of earnings, loss of
17 enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment and
18 humiliation, shame, indignity, damage to reputation, loss of property, loss of use and enjoyment of
19 her property, incurred monetary costs, economic loss, and deprivation of her constitutional rights.

20 100. The amount of damages sought in this action exceeds the jurisdictional limits of all
lower Courts that might otherwise have jurisdiction.

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**FIRST CLAIM FOR RELIEF AGAINST DEFENDANTS
PAPALLO, CASAZZA, TAYLOR, DONNEL, AND DOES 1-5**

(False Arrest/Imprisonment Claim Under 42 U.S.C. § 1983)

101. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

102. Defendants, while acting in concert and within the scope of their employment and authority, and without a warrant, seized plaintiff, forcibly put plaintiff into handcuffs, placed plaintiff under arrest without any reasonable cause to believe that plaintiff had committed, was committing, or was about to commit any offense, and caused plaintiff to be imprisoned and incarcerated at various facilities, and thereby deprived plaintiff of her rights, liberties, and freedoms under color of state law, including plaintiff's right to be free from unreasonable searches and seizures under the Fourth and Fourteenth Amendments to the United States Constitution.

**SECOND CLAIM FOR RELIEF AGAINST DEFENDANTS
PAPALLO, CASAZZA, TAYLOR, DONNEL, AND DOES 1-5**

(Excessive Force Claim Under 42 U.S.C. § 1983)

103. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

104. Defendants, acting in concert and within the scope of their employment and authority, used objectively unreasonable force in arresting plaintiff, in violation of plaintiff's right to be free from unreasonable seizure under the Fourth and Fourteenth Amendments to the United States Constitution.

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2 **THIRD CLAIM FOR RELIEF AGAINST DEFENDANTS**
3 **PAPALLO, CASAZZA, TAYLOR, DONNEL, AND DOES 1-5**

4 **(Malicious Prosecution Claim Under 42 U.S.C. § 1983)**

5 105. Plaintiff repeats and realleges each and every allegation set forth above as though
6 fully set forth at length herein.

7 106. Defendants, acting in concert and within the scope of their employment and
8 authority, caused plaintiff to be prosecuted with malice and without probable cause – a
9 prosecution that terminated in plaintiff’s favor – in violation of plaintiff’s right to be free from
10 unreasonable seizures under the Fourth and Fourteenth Amendments to the United States
11 Constitution.

12 **FOURTH CLAIM FOR RELIEF AGAINST DEFENDANTS**
13 **PAPALLO, CASAZZA, TAYLOR, DONNEL, AND DOES 1-5**

14 **(Malicious Abuse of Process Claim Under 42 U.S.C. § 1983)**

15 107. Plaintiff repeats and realleges each and every allegation set forth above as though
16 fully set forth at length herein.

17 108. Defendants, acting in concert and within the scope of their employment and
18 authority, employed regularly issued process against plaintiff compelling the performance or
19 forbearance of prescribed acts. The purpose of activating the process was intent to harm plaintiff
20 without economic or social excuse or justification, and the defendants were seeking a collateral
advantage or corresponding detriment to plaintiff which was outside the legitimate ends of the
process. Such collateral objective included, but was not limited to, covering up defendants’ illegal
actions in knowingly arresting plaintiff without any legal basis, justification, or probable cause.

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2 109. The acts and conduct of the defendants were the direct and proximate cause of
3 injury and damage to plaintiff and that by virtue of the aforementioned acts, plaintiff was deprived
4 of her rights, privileges and immunities secured by the Constitution of the United States, including
5 her rights under the Fourth and Fourteenth Amendments to the U.S. Constitution to be free from
6 unreasonable or unlawful searches and seizures and to due process of law.

7 **FIFTH CLAIM FOR RELIEF AGAINST DEFENDANTS**
PAPALLO, CASAZZA, TAYLOR, DONNEL, AND DOES 1-5

8 **(First Amendment Retaliation Claim Under 42 U.S.C. § 1983)**

9 110. Plaintiff repeats and realleges each and every allegation set forth above as though
10 fully set forth at length herein.

11 111. Defendants, acting in concert and within the scope of their employment and
12 authority, retaliated against plaintiff for protesting police misconduct, in violation of plaintiff's
13 right to freedom of speech under the First and Fourteenth Amendments to the United States
14 Constitution.

15 **SIXTH CLAIM FOR RELIEF AGAINST DEFENDANTS**
PAPALLO, CASAZZA, TAYLOR, DONNEL, AND DOES 1-5

16 **(Equal Protection Claim Under 42 U.S.C. § 1983)**

17 112. Plaintiff repeats and realleges each and every allegation set forth above as though
18 fully set forth at length herein.

19 113. Defendants, acting in concert and within the scope of their employment and
20 authority, deprived plaintiff of equal protection of the laws, in violation of the Fourteenth
Amendment to the United States Constitution.

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2 **SEVENTH CLAIM FOR RELIEF AGAINST DEFENDANTS**
3 **PAPALLO, CASAZZA, TAYLOR, DONNEL, AND DOES 1-5**

4 **(Failure-to-Intervene Claim Under 42 U.S.C. § 1983)**

5 114. Plaintiff repeats and realleges each and every allegation set forth above as though
6 fully set forth at length herein.

7 115. Each individual defendant had an affirmative duty to intervene on behalf of
8 plaintiff, whose constitutional rights were being violated in that defendant's presence by other
9 police officers, but failed to intervene to prevent the unlawful conduct, despite having had a
10 realistic opportunity to do so, in violation of plaintiff's right under the First, Fourth, and
11 Fourteenth Amendments to the United States Constitution.

12 **EIGHTH CLAIM FOR RELIEF AGAINST DEFENDANT CITY**

13 **(Municipal Liability "Monell" Claim under 42 U.S.C. § 1983)**

14 116. Plaintiff repeats and realleges each and every allegation set forth above as though
15 fully set forth at length herein.

16 117. The individual defendants, singly and collectively, while acting within the scope of
17 their employment and authority and under color of state law, engaged in conduct that constituted
18 customs, policies, practices, procedures, rules, or usages of the NYPD and their specific
19 precinct(s) forbidden by the Constitution of the United States.

20 118. The foregoing customs, policies, practices, procedures, rules, and usages include,
but are not limited to, making arrests without probable cause, subjecting individuals to excessive
force, and committing perjury.

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2 119. The abuse to which plaintiff was subjected was consistent with an institutionalized
3 practice of the NYPD, which was known to and ratified by defendant CITY.

4 120. Despite knowledge of these institutionalized practices, defendant CITY has at no
5 time taken any effective action to prevent NYPD personnel from continuing to engage in this type
6 of misconduct.

7 121. Defendant CITY had prior notice of the vicious propensities of defendants
8 PAPALLO, CASAZZA, TAYLOR, DONNEL, and DOES 1-5, but took no steps to train them,
9 correct their abuse of authority, or to discourage their unlawful use of authority.

10 122. The failure of defendant CITY to properly train defendants PAPALLO,
11 CASAZZA, TAYLOR, DONNEL, and DOES 1-5 included the failure to instruct them in
12 applicable provisions of the State Penal Law of the State of New York, federal and state
13 constitutional limitations, and the proper and prudent use of force.

14 123. Defendant CITY authorized, tolerated as institutionalized practices, and ratified
15 the misconduct detailed above by, among other things:

- 16 a. Failing to properly discipline, train, restrict, and control employees, including
17 defendants PAPALLO, CASAZZA, TAYLOR, DONNEL, and DOES 1-5,
18 known to be irresponsible in their dealings with citizens of the community;
- 19 b. Failing to take adequate precautions in the training, hiring, promotion, and
20 retention of police personnel, including specifically defendants PAPALLO,
CASAZZA, TAYLOR, DONNEL, and DOES 1-5.
- c. Failing to forward to the office of the District Attorney of Bronx County
evidence of criminal acts committed by police personnel;

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2 d. Failing to establish or assure the functioning of a bona fide and meaningful
3 departmental system for dealing with complaints of police misconduct, but
4 instead responding to these types of complaints with bureaucratic power and
5 official denials calculated to mislead the public.

6 e. That the failure to supervise and/or train by defendant CITY of defendants
7 PAPALLO, CASAZZA, TAYLOR, DONNEL, and DOES 1-5 rose to the
8 level of deliberate indifference to the consequences of its actions, and
9 indifference to plaintiff's rights, privileges and immunities secured by the
10 Constitution of the United States of America, inter alia, plaintiff's Fourth and
11 Fourteenth Amendment rights.

12 124. The NYPD has inadequately screened, hired, retained, trained, and supervised its
13 employees, including the individual defendants herein, to respect the constitutional rights of those
14 individuals with whom NYPD police officers come in contact.

15 125. The foregoing customs, policies, practices, procedures, rules, and usages
16 constituted deliberate indifference to plaintiff's safety, well-being, and constitutional rights.

17 126. The foregoing customs, policies, practices, procedures, rules, or usages were the
18 direct and proximate cause of the constitutional violations suffered by plaintiff.

19 127. The foregoing customs, policies, practices, procedures, rules, or usages were the
20 moving force behind the constitutional violations suffered by plaintiff.

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**NINTH CLAIM FOR RELIEF AGAINST DEFENDANTS
PAPALLO, CASAZZA, TAYLOR, DONNEL, AND DOES 1-5**

(Racial Discrimination Under 42 U.S.C. § 1981)

128. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

129. On account of plaintiff's race, defendants, acting in concert and within the scope of their employment and authority, violated plaintiff's right to equal rights and to be free from unreasonable searches and seizures and to due process of law under the Fourth and Fourteenth Amendments to the United States Constitution.

**TENTH CLAIM FOR RELIEF AGAINST DEFENDANTS
PAPALLO, CASAZZA, TAYLOR, DONNEL, AND DOES 1-5**

(Violation of Plaintiff's First Amendment Rights Under 42 U.S.C. § 1983)

130. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

131. Defendants, acting in concert and within the scope of their employment and authority, retaliated against plaintiff because she engaged in speech and associational activity protected by the First Amendment. As a direct result of defendants' willful, malicious, and/or recklessly indifferent actions, undertaken because of plaintiff's speech and association, plaintiff was subjected to extended and unreasonable detentions by local law enforcement, carried out without probable cause or even reasonable suspicion to believe that plaintiff had committed or was about to commit an offense. This unlawful seizure is the type of injury that would chill a person of ordinary firmness from continuing to engage in such protected conduct. Because the

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2 detention was extended and plaintiff was treated more harshly, in whole or in part, by defendants
3 in retaliation for plaintiff's protected speech and association, these defendants are liable for
4 violating plaintiff's First Amendment rights.

5 **ELEVENTH CLAIM FOR RELIEF AGAINST ALL DEFENDANTS**

6 **(Violation of Plaintiff's First Amendment Rights Under 42 U.S.C. § 1983)**

7 132. Plaintiff repeats and realleges each and every allegation set forth above as though
8 fully set forth at length herein.

9 133. Defendants, acting in concert and within the scope of their employment and
10 authority, illegally, improperly and unlawfully seized plaintiff's vehicle without any legal basis,
11 probable cause, privilege, or consent.

12 134. That the seizure of plaintiff's vehicle was objectively unreasonable and in
13 violation of the plaintiff's constitutional rights.

14 **Supplemental State Law Claims**

15 135. Plaintiff repeats and realleges each and every allegation set forth above as though
16 fully set forth at length herein.

17 136. Within ninety (90) days after the claims herein arose, plaintiff duly served
18 upon, presented to, and filed with defendant CITY OF NEW YORK a Notice of Claim setting
19 forth all facts and information required under New York General Municipal Law § 50-e.
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2 137. More than thirty (30) days have elapsed since the presentation of plaintiff's claims
3 to defendant CITY. And defendant CITY has wholly neglected or refused to make an adjustment
4 or payment thereof.

5 138. This action was commenced within one (1) year and ninety (90) days after the
6 claims accrued.

7 139. Plaintiff has complied with all conditions precedent to maintaining the instant
8 action.

9 **TWELFTH CLAIM FOR RELIEF AGAINST ALL DEFENDANTS**

10 **(False Arrest/Imprisonment Claim Under New York Law)**

11 140. Plaintiff repeats and realleges each and every allegation set forth above as though
12 fully set forth at length herein.

13 141. Defendants, acting in concert and within the scope of their employment and
14 authority, arrested and caused plaintiff to be imprisoned without probable cause to believe that
15 plaintiff had committed any crime or offense, and without any warrant or authority to do so.

16 142. Defendant CITY is also liable for the damages suffered by plaintiff as a result of
17 the conduct of its agents, servants, and/or employees under the doctrine of respondeat superior.

18 **THIRTEENTH CLAIM FOR RELIEF AGAINST ALL DEFENDANTS**

19 **(Assault Claim Under New York Law)**

20 143. Plaintiff repeats and realleges each and every allegation set forth above as though
fully set forth at length herein.

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2 144. Defendants, acting in concert and within the scope of their employment and
3 authority, placed plaintiff in apprehension of imminent harmful and offensive bodily contact.

4 145. Defendant CITY is also liable for the damages suffered by plaintiff as a result of
5 the conduct of its agents, servants, and/or employees under the doctrine of respondeat superior.

6 **FOURTEENTH CLAIM FOR RELIEF AGAINST ALL DEFENDANTS**

7 **(Battery Claim Under New York Law)**

8 146. Plaintiff repeats and realleges each and every allegation set forth above as though
9 fully set forth at length herein.

10 147. Defendants, acting in concert and within the scope of their employment and
11 authority, made offensive contact with plaintiff without privilege or consent.

12 148. Defendant CITY is also liable for the damages suffered by plaintiff as a result of
13 the conduct of its agents, servants, and/or employees under the doctrine of respondeat superior.

14 **FIFTEENTH CLAIM FOR RELIEF AGAINST ALL DEFENDANTS**

15 **(Malicious Prosecution Claim Under New York Law)**

16 149. Plaintiff repeats and realleges each and every allegation set forth above as though
17 fully set forth at length herein.

18 150. Defendants, acting in concert and within the scope of their employment and
19 authority, caused plaintiff to be prosecuted with malice and without probable cause – a
20 prosecution that terminated in plaintiff's favor.

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2 151. Defendant CITY is also liable for the damages suffered by plaintiff as a result of
3 the conduct of its agents, servants, and/or employees under the doctrine of respondeat superior.

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5 **SIXTEENTH CLAIM FOR RELIEF AGAINST ALL DEFENDANTS**

6 **(Abuse of Process Claim Under New York Law)**

7 152. Plaintiff repeats and realleges each and every allegation set forth above as though
8 fully set forth at length herein.

9 153. Defendants, acting in concert and within the scope of their employment and
10 authority, employed regularly issued process against plaintiff compelling the performance or
11 forbearance of prescribed acts. The purpose of activating the process was intent to harm plaintiff
12 without economic or social excuse or justification, and the defendants were seeking a collateral
13 advantage or corresponding detriment to plaintiff which was outside the legitimate ends of the
14 process. Such collateral objective included, but was not limited to, covering up defendants' illegal
15 actions in knowingly arresting plaintiff without any legal basis, justification, or probable cause.

16 154. Defendant CITY is also liable for the damages suffered by plaintiff as a result of
17 the conduct of its agents, servants, and/or employees under the doctrine of respondeat superior.

18 **SEVENTEENTH CLAIM FOR RELIEF AGAINST ALL DEFENDANTS**

19 **(Violation Of Plaintiff's Rights Under The New York State Constitution)**

20 155. Plaintiff repeats and realleges each and every allegation set forth above as though
fully set forth at length herein.

156. Defendants, acting in concert and within the scope of their employment and

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2 authority, retaliated against plaintiff for protesting police misconduct, in violation of plaintiff's
3 right to freedom of speech under Article I, Section 8 of the New York State Constitution.

4 157. Defendants, acting in concert and within the scope of their employment and
5 authority, violated plaintiff's right to be free of unreasonable and unlawful searches and seizures
6 under Article I, § 12 of the New York State Constitution.

7 158. Defendants, acting in concert and within the scope of their employment and
8 authority, consciously disregarded known and excessive risks to plaintiff's liberty and welfare and
9 engaged in a deliberate and unjustified effort to manufacture guilt against plaintiff in furtherance
10 of a plan to secure and sustain an unjust conviction against her.

11 159. Upon information and belief, this included a course of conduct and pattern of
12 behavior whereby defendants, inter alia, created and fabricated evidence to create the appearance
13 of probable cause to believe that plaintiff had committed one or more offenses, intentionally and
14 maliciously concealed material exculpatory evidence, gave and suborned perjurious testimony,
15 and unduly influenced the statements and testimony of witnesses by means of threats, coercion,
16 violence, or deceit.

17 160. That by virtue of the aforementioned acts, defendants deprived plaintiff of her
18 liberty and property without due process of law, in contravention of Article I, § 6 of the New York
19 State Constitution.

20 161. Defendant CITY is also liable for the damages suffered by plaintiff as a result of
the conduct of its agents, servants, and/or employees under the doctrine of respondeat superior.

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2 **EIGHTEENTH CLAIM FOR RELIEF AGAINST ALL DEFENDANTS**

3 **(Intentional Infliction Of Emotional Distress)**

4 162. Plaintiff repeats and realleges each and every allegation set forth above as though
5 fully set forth at length herein.

6 163. Defendants, acting in concert and within the scope of their employment and
7 authority, engaged in the aforesaid conduct which was extreme, outrageous, shocking and which
8 exceeded all reasonable bounds of decency.

9 164. Defendants' extreme and outrageous conduct was intended to cause and did cause
10 severe emotional distress to plaintiff.

11 165. Defendant CITY is liable for the damages suffered by plaintiff as a result of the
12 conduct of its agents, servants and/or employees, under the doctrine of respondeat superior.

13 **NINETEENTH CLAIM FOR RELIEF AGAINST ALL DEFENDANTS**

14 **(Negligent Infliction Of Emotional Distress)**

15 166. Plaintiff repeats and realleges each and every allegation set forth above as though
16 fully set forth at length herein.

17 167. Defendants, acting in concert and within the scope of their employment and
18 authority, engaged in the aforesaid conduct in a manner that was careless and negligent as to the
19 emotional health of plaintiff.

20 168. Defendant CITY is liable for the damages suffered by the plaintiff as a result of the
conduct of its agents, servants and/or employees, under the doctrine of respondeat superior.

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2 **TWENTIETH CLAIM FOR RELIEF AGAINST ALL DEFENDANTS**

3 **(Negligence / Gross Negligence)**

4 169. Plaintiff repeats and realleges each and every allegation set forth above as though
5 fully set forth at length herein.

6 170. That the aforesaid incident and resulting injuries to plaintiff were due to the
7 negligence and/or gross negligence of defendants, and each of them, in the manner in which they
8 performed their duties as officers of the NYPD; in failing to exercise reasonable care in
9 connection with the performance of their duties; in failing adequately to evaluate the situation
10 confronting them; and in otherwise being negligent and/or grossly negligent.

11 171. That the aforementioned incident and injuries to plaintiff were caused solely and
12 wholly by reason of the recklessness, carelessness, and negligence and/or gross negligence of
13 defendants herein and without any negligence on the part of plaintiff contributing thereto.

14 172. Defendant CITY is liable for the damages suffered by the plaintiff as a result of the
15 conduct of its agents, servants and/or employees, under the doctrine of respondeat superior.

16 **TWENTY-FIRST CLAIM FOR RELIEF AGAINST ALL DEFENDANTS**

17 **(Negligent Screening, Hiring, Supervision, And Retention Claim Under New York Law)**

18 173. Plaintiff repeats and realleges each and every allegation set forth above as though
19 fully set forth at length herein.

20 174. Defendants failed to use reasonable care in the screening, hiring, supervision, and
retention of the NYPD employees who participated in the above unlawful conduct.

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2 175. Defendant CITY is also liable for the damages suffered by plaintiff as a result of
3 the conduct of its agents, servants, and/or employees under the doctrine of respondeat superior.

4 **TWENTY-SECOND CLAIM FOR RELIEF AGAINST ALL DEFENDANTS**

5 **(Negligent Training Claim Under New York Law)**

6 176. Plaintiff repeats and realleges each and every allegation set forth above as though
7 fully set forth at length herein.

8 177. Defendants failed to use reasonable care in the training of the NYPD employees
9 who participated in the above unlawful conduct.

10 178. Defendant CITY is also liable for the damages suffered by plaintiff as a result of
11 the conduct of its agents, servants, and/or employees under the doctrine of respondeat superior.

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PRAYER FOR RELIEF

WHEREFORE, plaintiff demands the following relief jointly and severally against all the defendants:

- a. Compensatory damages in an amount to be determined at trial;
- b. Punitive damages in an amount to be determined at trial;
- c. Attorney's fees pursuant to 42 U.S.C. § 1988;
- d. An award of plaintiff's costs of suit;
- e. Pre-judgment and post-judgment interest;
- f. Such other relief as this Court deems just and proper.

Dated: New York, New York
December 31, 2014

Respectfully submitted,

BENNO & ASSOCIATES P.C.

By: _____


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New York, NY 10005
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abenno@ameerbenno.com

Attorneys for Plaintiff

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ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the State of New York, hereby affirms, that the undersigned has read the foregoing Verified Complaint, knows the contents thereof; that the same is true to affirmant's own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters affirmant believes them to be true.

The undersigned further states that the reason this affirmation is made by the undersigned and not plaintiff is that plaintiff resides in a county other than that in which affirmant maintains his offices.

The grounds of affirmant's belief as to all matters not stated to be upon affirmant's knowledge are as follows: Investigations and the contents of affirmant's file.

The undersigned affirms that the foregoing statements are true, under penalty of perjury.

Dated: New York, New York
December 31, 2014



AMEER BENNO

INDEX NO.

YEAR

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

MARSHA SIBBLIES,

Plaintiff,

- against -

THE CITY OF NEW YORK, P.O. ANTONIO PAPALLO, P.O. JOHN CASAZZA, LT.
WILLIAM TAYLOR, SGT. LAWRENCE DONNEL, AND "JOHN DOES 1-5,"

Defendants.

SUMMONS AND VERIFIED COMPLAINT

BENNO & ASSOCIATES P.C.

Attorneys for Plaintiff
Office and Post Office Address, Telephone
30 WALL STREET, 8th FLOOR
NEW YORK, NEW YORK 10005
(212) 227-9300

Signature Pursuant to Rule 130-1.1-a



Ameer Benno

To:

Attorney(s) for:
